

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**----- X
THOMAS HAMM,

Index No.:

Date Purchased:

Plaintiffs,

SUMMONS

-against-

Plaintiff designates Kings
County as place of trial.THE CITY OF NEW YORK, New York City Police
Sgt. Steven Franzel, Shield No. 3573, JOHN DOES 1,
2, 3, etc. (the name John Doe being fictitious as the
true names of said officers are currently not known),
all of whom are sued in their individual capacities,The basis of venue is the location of
the unlawful actsDefendants.
----- X

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within **20** days after the service of this summons, exclusive of the day of service (or within **30** days after the service of this summons if not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
August 2, 2019

BELDOCK LEVINE & HOFFMAN LLP

By: _____
David B. Rankin
99 Park Avenue, PH/26th Fl.
New York, New York 10016
(212) 490-0400

Attorneys for Plaintiffs

To:

City of New York
Corporation Counsel of the City of New York
100 Church Street
New York, NY 10007

Sgt. Steven Franzel, (Shield No. 3573)
73rd Precinct
1470 E. New York Ave.
Brooklyn, NY 11212

JOHN DOES 1, 2, 3, etc.
100 Church Street
New York, NY 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE KINGS**

----- X
THOMAS HAMM,

Plaintiff,

-against-

THE CITY OF NEW YORK, New York City Police
Sgt. Steven Franzel, Shield No. 3573, JOHN DOES 1, 2,
3, etc. (the name John Doe being fictitious as the true
names of said officers are currently not known), all of
whom are sued in their individual capacities,

Defendants.
----- X

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Index No.:

Plaintiff, Thomas Hamm, by his attorneys, Beldock Levine and Hoffman LLP, for his
Complaint, alleges as follows:

INTRODUCTION

1. This is a civil rights action brought to vindicate Plaintiff's rights under the Fourth, Fifth, and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983.

2. Plaintiff's rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally and without any legal basis seized, detained, searched, and arrested him. By reason of Defendants' actions, including their unreasonable and unlawful searches and seizures, Plaintiff was deprived of his constitutional rights.

3. Plaintiff seeks an award of compensatory and punitive damages, and attorneys' fees.

PARTIES

1. At all times hereinafter mentioned, was and is still a resident of the County of the Kings in the State of New York.

2. Defendant the City of New York (“City”) is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It has all the powers vested in it by the laws of the State of New York, the City of New York and the Charter of the City of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD. At all relevant times herein, it was the employer of the individually-named defendants.

3. New York City Police Department Sgt. Steven Franzel, Shield No. 3573, and P.O. John Does 1, 2, 3, etc. (referred to collectively as the “Individual Defendants”) are and were at all times relevant herein, officers, employees and agents of the NYPD.

4. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees, and agents of the NYPD.

5. The Individual Defendants are being sued in their individual capacities.

6. The Individual Defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of Plaintiff's rights.

7. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

8. The true name and shield number of the John Doe Defendants are not currently known to the Plaintiff. However, they were employees or agents of the City of New York on the date of the incident. Accordingly, they are entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said individuals as Defendants in an amended pleading once the true names and shield numbers of said Defendants become known and (b) that the Law Department should immediately begin preparing their defense in this action.

JURISDICTION

9. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988; the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

VENUE

10. Venue is properly laid in the Supreme Court of the State of New York, County of Kings because the Plaintiff resides in Brooklyn.

STATEMENT OF FACTS

11. At approximately 3:00 p.m. on January 6th, 2017, Plaintiff Thomas Hamm was unlawfully arrested by Sgt. Steven Franzel, Shield No. 3573, and P.O. John Does 1, 2, 3, etc. at or around the corner of East New York Avenue and Albany Avenue in Brooklyn, New York.

12. Plaintiff was on the sidewalk taking apart a discarded vacuum cleaner for a part to replace in his own vacuum cleaner.

13. Sgt. Franzel of the Narcotics Borough Brooklyn South, Shield No. 3573 and P.O. John Does 1, 2, 3, etc. approached Plaintiff and searched him.

14. Defendants recovered a receipt from Plaintiff's wallet of a recent purchase Plaintiff had made at the 99¢ Diamond store on 574 Albany Avenue, Brooklyn NY, 11203.

15. Defendants falsely alleged that the receipt was a glassine envelope containing heroin residue.

16. Upon information and belief, Sgt. Franzel and P.O. John Does 1, 2, 3, etc. knew that individuals in the area were in recovery and targeted individuals in the area based on their status as recovering addicts.

17. Plaintiff was arrested and placed in an unmarked police vehicle.

18. While in the unmarked police vehicle, Plaintiff suffered an asthma attack and required his inhaler, but was handcuffed behind his back and could not reach it.

19. Officer pulled over and while they administered the inhaler, did not allow Plaintiff to use the inhaler himself.

20. A few minutes later, the unmarked police vehicle stopped, the officers removed Plaintiff from the vehicle and placed him into a windowless white van which brought Plaintiff and other individuals in custody within the van to the 71st Precinct.

21. Plaintiff remained in custody at the 71st Precinct for approximate six hours.

22. Plaintiff was issued a Desk Appearance Ticket for the misdemeanor of Penal Law 220.03, criminal possession of a controlled substance in the seventh degree.

23. Plaintiff had to make numerous appearances in court to defend himself again these false charges.

24. Plaintiff's case was resolved with an Adjournment in Contemplation of Dismissal.

FIRST CLAIM
DEPRIVATION OF RIGHTS UNDER THE UNITED STATES CONSTITUTION
42 U.S.C. § 1983
(Against the Individual Defendants)

25. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

26. Defendants, under color of state law, subjected the Plaintiff to the foregoing acts and omissions, thereby depriving Plaintiff of his rights, privileges and immunities secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable seizure of his person; (b) freedom from arrest without probable cause; (c) freedom from the denial of a fair trial by the presentation of fabricated evidence; (d) right to due process under the law; (e) freedom from malicious prosecution; and (f) freedom from officers' failure to intervene to prevent the complained of conduct.

27. Defendants' deprivation of Plaintiff's constitutional rights resulted in the injuries and damages set forth above.

SECOND CLAIM
LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL VIOLATIONS
42 U.S.C. § 1983
(Against Defendant the City of New York)

28. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

29. At all times material to this complaint, Defendant City had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

30. At all times material to this complaint, Defendant City failed to properly train, screen, supervise, or discipline its employees and police officers, including the individual Defendants and failed to inform the individual Defendant's supervisors of their need to train, screen, supervise or discipline the Individual Defendants.

31. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth, Fifth, and Fourteenth Amendments.

32. As a result of the foregoing, Plaintiff was deprived of liberty, suffered emotional distress, humiliation, costs and expenses, and was otherwise damaged and injured.

THIRD CAUSE OF ACTION
Violations of New York State Constitution

33. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

34. Sgt. Steven Franzel and P.O. John Does 1, 2, 3, etc. subjected Plaintiff to the foregoing acts and omissions without due process of law, thereby depriving the Plaintiffs of rights, privileges, and immunities guaranteed by Article 1, § 6 and 12 of the New York State Constitution, including, without limitation, the right to due process and the right to be free from unreasonable searches and seizures.

35. As a direct and proximate result of Defendants' deprivations of Plaintiff's rights,

privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered the injuries and damages set forth above.

JURY DEMAND

36. Plaintiff demands a trial by jury in this action on each and every one of his damage claims.

WHEREFORE, Plaintiff demands judgment against the Defendants individually and jointly and prays for relief as follows:

- a. that he be compensated for violation of his constitutional rights, pain, suffering, mental anguish and humiliation; and
- b. that he be awarded punitive damages against the Individual Defendants; and
- c. that he be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. For such other further and different relief as to the Court may deem just and proper.

Dated: August 2, 2019
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP



By: _____
David B. Rankin
99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400

ATTORNEY'S VERIFICATION

I, David B. Rankin, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for the Plaintiff.
- 2) I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: August 2, 2019
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP



By: _____
David B. Rankin
99 Park Avenue, PH/26th Floor
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